

Amendment No. 1 to HB0796

Vaughan
Signature of Sponsor

AMEND Senate Bill No. 717*

House Bill No. 796

by deleting all language after the enacting clause and substituting the following:

SECTION 1. Tennessee Code Annotated, Section 65-4-113, is amended by adding the following as a new subsection:

(f) Notwithstanding a municipal charter, ordinance, regulation, or franchise agreement to the contrary, prior to the acquisition of assets of a natural gas utility regulated by the commission by a new owner or any other change in control of such assets, the commission has exclusive authority to approve the acquisition or change in control, including the assignment of franchise rights, upon a finding by the commission that such transfers of assets or control is in the public interest. Any commission order on or after October 1, 2025, finding such transfer to be in the public interest, shall effect the transfer, including franchise rights, from one (1) regulated franchisee to another. Upon such transfer, all terms and conditions applicable to any existing natural gas service franchise apply to the successor entity.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.